

P O R T E R | S C O T T

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CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

04/22/2026

Clerk of the Court

BY: SANDRA SCHIRO

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF MOTION
TO STRIKE**

vs.

CSAA INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

(C.C.P. § 435 AND C.C.P. § 436)

Defendants.

DATE: May 19, 2026

TIME: 09:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025 Amended

Complaint Filed: February 25, 2026

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1 **I. INTRODUCTION**

2 Plaintiff's First Amended Complaint ("FAC") improperly seeks damages that are not recoverable
3 as a matter of law, including: attorney's fees, punitive damages, and a series of allegedly compensatory
4 damages including: "forced third party litigation" damages, lost earnings, loss of earning capacity, "lost
5 productive time," various medical-related damages, transportation, "household assistance," emotional
6 distress damages, "future damages," injunctive relief, prejudgment interest and other miscellaneous and
7 legally unsupportable items of alleged damage. All these items of alleged damages arise from Plaintiff's
8 underlying third-party litigation against a CSAA insured, where Plaintiff lost by defense verdict; hence,
9 these alleged damages are unsupported by any statutory, contractual, or factual basis. Further, the conduct
10 alleged in the FAC is absolutely privileged as occurring in the course of litigation. Under Code of Civil
11 Procedure § 436, the Court is authorized to strike any irrelevant, improper, or nonconforming matter from
12 a pleading. Because the deficiencies in Plaintiff's damages claims appear on the face of the FAC and
13 cannot be cured by amendment, the challenged portions should be stricken in their entirety.

14 **II. STATEMENT OF THE FACTS**

15 **A. THE PARTIES**

16 Plaintiff is FRANCISCUS DYLAN ROSARIO ("Plaintiff").

17 Defendant CSAA INSURANCE EXCHANGE ("CSAA") was the insurance carrier for SUBHI
18 ABDELHALIM ("Insured") during Plaintiff's litigation of *Rosario v. Abdelhalim*, Case No. CGC-21-
19 594102.

20 **B. FACTUAL AND PROCEDURAL BACKGROUND**

21 Plaintiff has filed this new action (*See* RFJN **Ex. A**, *Plaintiff's FAC*) against the original
22 defendant—from Plaintiff's prior personal injury lawsuit—SUBHI ABDELHALIM's insurance carrier:
23 CSAA INSURANCE EXCHANGE ("CSAA" or "Defendant"). CSAA was the provider of
24 ABDELHALIM's insurance policy. This motion to strike is filed on behalf of CSAA. (*See* RFJN **Ex. B**,
25 *Register of Actions, Rosario v. Abdelhalim*, Case No. CGC-21-594102). Phillips, Spallas, and Angstadt,
26 LLP, Priya D. Navaratnasingham, Alberto Reyna (collectively referred to as "PSA") were CSAA's
27 retained insurance defense counsels who obtained a defense verdict at Plaintiff's underlying trial.

28 ///

1 **1. The Underlying Litigation – Plaintiff Lost his Jury Trial by Defense Verdict**

2 The FAC’s allegations against CSAA relate to Plaintiff’s belief that i) CSAA should not have
3 denied his claim back in February 2021; and ii) that CSAA, by and through its retained defense counsels,
4 made “false and misleading representations” (*FAC* ¶ 22F) to this Court (based on CSAA’s earlier claim
5 denial) which resulted in Plaintiff being forced to litigate his underlying jury trial—which Plaintiff lost by
6 defense verdict. (*See* RFJN **Ex. C**, *Defendant’s Notice of Entry of Judgment, Rosario v. Abdelhalim, Case*
7 *No. CGC-21-594102*). Now, Plaintiff seeks to recast his prior litigation as a claim against the original
8 defendant’s insurer: CSAA. The gravamen of FAC’s allegations swirl around all the same issues in the
9 underlying case—differences of opinion on the weight of certain trial evidence (911 calls, bodycam
10 footage, and CAD logs).

11 It is true that CSAA’s retained defense counsels *did* attempt to exclude the “objective liability
12 evidence” (*See FAC* ¶ 4); however, the Court denied Defendant’s motions in limine targeting this
13 evidence. Hence, Plaintiff was free to present to the jury, the complained-of “objective liability evidence.”
14 (*See FAC* ¶ 4). And he did just that at trial.

15 Each of the above claims is barred by California law as a collateral attack on a valid judgment and
16 invalid as a matter of law for seeking to target protected activity.¹ Along with these legally invalid claims,
17 Plaintiff’s FAC seeks recovery on equally invalid grounds for punitive damages (*see FAC* ¶ 1, 45, 47);
18 for lost earnings (*See FAC* ¶ 30-32); nebulous “health-related harm” damages (*see FAC* ¶ 33-36);
19 emotional distress damages (*See FAC* ¶ 37-40); and punitive damages (*See FAC* ¶ 61(5).) Plaintiff alleges
20 each of these so-called harms occurred as a result of standard litigation practices in a lawsuit that he
21 himself filed, litigated, and which a jury found to be meritless in rendering a defense verdict.

22 **2. Plaintiff’s Claimed Items of Damage to Be Stricken**

23 Plaintiff’s FAC claims a bevy of purported damages, none of which are supportable under
24 California law, in these circumstances, and all should be stricken from the pleadings.

25 **a) RELIANCE AND ECONOMIC INJURY** (*FAC*, pg. 8: line 14):

- 26 ○ out-of-pocket procurement and investigation expenses to obtain records and evidence
27 that CSAA represented had already been investigated, including:
 - 28 ▪ fees paid to obtain public records and related materials;
 - fees paid for copying, certification, and retrieval; and
 - fees paid for transcription and review of obtained audio and video. (*FAC*, ¶ 23-24).

¹ Defendant has recently filed a Demurrer and a Special Motion to Strike under Code Civ. Proc. § 425.16 (Anti-SLAPP motion).

1 **b) FORCED THIRD PARTY LITIGATION AND PRENTICE ATTORNEY-FEE**
2 **DAMAGES** (*FAC*, pg. 9: line 1-2)

- 3 ○ Plaintiff incurred fees and litigation costs in that third-party action that would not have
4 been incurred but for CSAA's Denial Letter misrepresentation. (*FAC*, ¶ 26).
5 ○ CSAA's tortious conduct caused Plaintiff to incur fees in litigation with another party.
6 (*FAC*, ¶ 27).²

7 **c) LOST EARNINGS, LOSS OF EARNING CAPACITY, AND LOST PRODUCTIVE**
8 **TIME CAUSE BY FRAUD INDUCED BURDENS** (*FAC*, pg. 10: line 6-7)

- 9 ○ ...incremental burdens that required Plaintiff to spend substantial time and effort
10 obtaining, reviewing, organizing, transcribing, authenticating, and presenting
11 foundational objective evidence that CSAA represented had already been investigated
12 before issuing a categorical denial. (*FAC*, ¶ 30).

13 **d) FRAUD-INDUCED DELAY, PHYSICAL EXACERBATION, AND ADDITIONAL**
14 **HEALTH-RELATED HARM** (*FAC*, pg. 10: line 20-21)

- 15 ○ Plaintiff alleges he suffered severe injuries in the underlying collision and that CSAA
16 knew, or had reason to know, from the nature of the claim and the information provided
17 in connection with the bodily-injury liability claim, that Plaintiff was physically
18 vulnerable and that prolonged stress, delay, and repeated high-strain demands would
19 foreseeably impose additional physical toll. (*FAC*, ¶ 33).
20 ○ forced Plaintiff into a protracted and burdensome multi-year effort to establish and
21 authenticate foundational objective evidence relevant to liability, resulting in recurring
22 high-strain events including prolonged sitting, travel, preparation demands, and
23 extended periods of stress and uncertainty. (*FAC*, ¶ 34).
24 ○ incremental physical harm beyond the underlying collision injuries, including
25 exacerbation of pain, flare episodes, sleep disruption, deconditioning, and functional
26 decline, and that Plaintiff required additional medical or therapeutic care to address
27 these incremental harms. (*FAC*, ¶ 35).

28 **e) EMOTIONAL DISTRESS, HUMILIATION, AND PSYCHOLOGICAL HARM**
PROXIMATELY CAUSED BY FRAUD-INDUCED DELAY AND BURDENS (*FAC*, pg.
11: line 12-14)

- 19 ○ CSAA's Denial Letter ... stating... CSAA had "concluded" its investigation and
20 "concluded" its insured was not liable"[,] ... foreseeably inflicted substantial emotional
21 and psychological harm by placing Plaintiff in the position of being categorically
22 denied while also being forced to personally bear the burden of obtaining and proving
23 the foundational objective evidence CSAA represented had already been investigated.
24 (*FAC*, ¶ 37).
25 ○ Plaintiff suffered emotional distress and psychological harm including anxiety,
26 persistent stress, sleep disruption, and related symptoms, as well as humiliation and
27 loss of dignity associated with being treated as though his claim lacked merit
28 notwithstanding the existence of readily obtainable objective evidence. (*FAC*, ¶ 38).
○ Plaintiff incurred additional out-of-pocket medical or therapeutic expenses related to
managing these conditions. (*FAC*, ¶ 39).

f) ADDITIONAL SPECIAL DAMAGES: MEDICAL/THERAPEUTIC EXPENSES,
TRANSPORTATION, AND HOUSEHOLD ASSISTANCE (*FAC*, pg. 12: line 7-8)

- medical visits, therapy or counseling, medication expenses, transportation expenses
associated with treatment and required events, and costs of assistance with household

² The *FAC* duplicitously claims that "Plaintiff does not seek attorney fees in this action as a prevailing-party fee award." (*FAC* ¶ 28). Well, naturally, given that Plaintiff lost his jury trial and owes approximately \$75,000.00 in costs.

tasks and self-care that were increased by the incremental physical and psychological toll caused by the fraud-induced delay. (*FAC*, ¶ 41).

g) FUTURE DAMAGES CAUSED BY FRAUD-INDUCED AGGRAVATION AND ONGOING HARM (*FAC*, pg. 12: line 18-19)

- may require future medical or therapeutic care, and may continue to impair Plaintiff's ability to work and to engage in ordinary life activities. (*FAC*, ¶ 43).

h) INJUNCTIVE RELIEF (*FAC*, pg. 18: line 5)

- Enjoining CSAA from issuing denial letters stating an investigation is 'concluded.' (*FAC*, pg. 18: line 5-6)

i) COSTS OF SUIT (*FAC*, pg. 18: line 17)

j) PREJUDGMENT INTEREST (*FAC*, pg. 18: line 18).

III. LEGAL STANDARD

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof..." (Code Civ. Proc. § 435(B)(1).) Furthermore, "[t]he court may, upon a motion made pursuant to section 435, or at any time in its discretion, and upon terms it deems proper:

(a) strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc. § 436)

Where pleadings are defective, "the defect may be raised by a demurrer or motion to strike or by motion for judgment on the pleadings." (*Coyne v. Krempels*, (1950) 36 Cal.2d 257, 263.)

Here, each of Plaintiff's alleged damages falls squarely within this rule. Plaintiff cannot recover attorney's fees as a self-represented litigant; cannot meet the heightened pleading and evidentiary requirements for punitive damages; and cannot base any other claimed damages on conduct that is absolutely privileged under California's litigation privilege, and when he lacks standing.

IV. THE FAC'S CLAIMED DAMAGES ARE IRRELEVANT, FALSE, IMPROPER AND DO NOT CONFORM WITH THE LAWS OF THIS STATE

Plaintiff's FAC improperly seeks multiple categories of damages that are not recoverable as a matter of law and are unsupported by any cognizable factual or legal basis. As set forth below, Plaintiff's demands for attorney's fees, punitive damages, and all compensatory damages each fail independently under well-established California law. The FAC relies on conclusory allegations, improper legal argument, and conduct that is either legally privileged or wholly insufficient to meet the applicable pleading and evidentiary standards. Accordingly, these damages claims constitute irrelevant, improper, and nonconforming matter subject to strike pursuant to Code Civ. Pro. § 436.

1 **A. THERE IS NO BASIS FOR PLAINTIFF’S CLAIM FOR ATTORNEY’S FEES**

2 “Except as attorney’s fees are specifically provided for by statute, the measure and mode of
3 compensation of attorneys and counselors at law is left to the agreement, express or implied, of the
4 parties;...” (*Trope v. Katz* (1995) 11 Cal.4th 274, 278–279; Code Civ. Proc., § 1021.) Under California
5 law, a party litigating in propria persona is not entitled to recover attorney’s fees. (*Trope*, supra, 11 Cal.4th
6 at 292.)

7 Here, Plaintiff seeks attorney’s fees for his own time, as a pro per litigant, and for expenses
8 allegedly incurred in litigating his prior action—and this action. (FAC, p. 3, lines 12–15; p. 9, lines 16–
9 25.) However, the FAC identifies no statutory, contractual, or equitable basis for such recovery. Even if
10 Plaintiff had an attorney, which he does not, he represented himself in both the underlying litigation and
11 this action and therefore cannot recover such fees as a matter of law. (*Ibid.*)

12 Accordingly, Plaintiff’s demand for attorney’s fees is improper and should be stricken pursuant to
13 Code of Civil Procedure section 436 as irrelevant and not drawn in conformity with California law.

14 **B. THERE IS NO BASIS FOR PLAINTIFF’S CLAIM FOR PUNITIVE DAMAGES**

15 “A claim for punitive damages requires ‘evidence which establishes by ‘clear and convincing
16 evidence’ that the defendant has been ‘guilty of oppression, fraud, or malice.’” (*Food Pro Internat., Inc.*
17 *v. Farmers Ins. Exchange* (2008) 169 Cal.App.4th 976, 994, quoting *Stewart v. Truck Ins. Exchange*
18 (1993) 17 Cal.App.4th 468, 481-482.) This requirement is enshrined in Civil Code § 3294(a) which states
19 in relevant part that “[i]n an action for the breach of an obligation. . . , where it is proven by clear and
20 convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff. . .
21 may recover damages for the sake of example and by way of punishing the defendant.” To meet this
22 evidentiary standard, Plaintiff must present evidence that is “so clear as to leave no substantial doubt’;
23 ‘sufficiently strong to command the unhesitating assent of every reasonable mind.” (*In re Angelia P.*,
24 (1981) 28 Cal.3d 908, 919.)

25 Along with its failure to state a “breach of an obligation”, as required by Civ. Code § 3294(a), the
26 FAC presents no factual support for any fraud. Instead, the FAC seems to rely on quotations from litigation
27 related communications in which CSAA stated that it had concluded its investigation into Plaintiff’s
28 original claim. (*See FAC* ¶¶ 2, 4, 5, 8, 16, 17, 18, 20.) Plaintiff alleges that this denial letter, and subsequent

1 litigation conduct, constitutes evidence of fraud. Not only is the information alleged by Plaintiff proper,
2 litigation related conduct and thus subject to absolute privilege, it does not present evidence of any kind,
3 let alone “sufficiently strong to command the unhesitating assent of every reasonable mind.” (*In re*
4 *Angelia, supra*, at 919.) Instead, to support his assertion Plaintiff presents arguments which.

5 The FAC presents as evidence only an argument that, “CSAA could not have reached a conclusion
6 that its insured was ‘not liable’ in the face of its own insured’s admission of contact. The existence of this
7 admission [allegedly in a 911 call] corroborates either that CSAA never obtained the recording (rendering
8 the ‘investigation concluded’ representation false) or that CSAA obtained it and disregarded it (rendering
9 the denial reckless or fraudulent).” (*See FAC* ¶21A.) This is argument over the interpretation of evidence.
10 CSAA reached a different conclusion from the evidence, and the jury agreed with CSAA. Plaintiff’s FAC
11 fails, therefore, to present evidence which is so “clear as to leave no substantial doubt” (*In re Angelia,*
12 *supra*, at 919,) that a routine denial of an insurance claim (a denial supported by the jury’s verdict)
13 constitutes malice, oppression or fraud. Crucially, the jury reached the same conclusion that CSAA
14 reached in its investigation, that CSAA’s insured was not, in any way, liable to Plaintiff.

15 **1. Plaintiff’s Claim for Punitive Damages is Subject to Strike Because There Has**
16 **Been No Oppression.**

17 Oppression is conduct “that subjects a person to cruel and unjust hardship in conscious disregard
18 of their rights.” (*Today’s IV v. Los Angeles Metropolitan Transportation Authority* (2022) 83 Cal. App.
19 5th 1137.)

20 To support his conclusion that CSAA’s denial of liability was improper, Plaintiff’s allegations
21 center around CSAA’s defense of it’s insured (*See FAC* at ¶ 22D, 22F.) Plaintiff was allegedly “forced ...
22 into third-party litigation in CGC-21-594102 to vindicate his claim” via routine litigation. (*See FAC* ¶ 25.)
23 Not only was Plaintiff’s claim not “vindicated”, but a properly empaneled jury rendered a “9-3 defense
24 verdict in the Underlying Action.” (*See FAC* ¶ 25A.) In sum, Plaintiff alleges that CSAA’s good faith
25 litigation defense of it’s insured from Plaintiff’s unsuccessful litigation has somehow deprived him of key
26 rights. CSAA abiding its contractual duty to fund a successful defense of its cannot constitute the requisite
27 oppression for the pleading of punitive damages.

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1 **2. Plaintiff’s Claim for Punitive Damages is Subject to Strike Because the FAC**
2 **Cannot Allege Malice.**

3 “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or
4 despicable conduct which is carried on by the defendant with a willful and conscious disregard of the
5 rights or safety of others.” (Civ. Code, § 3294 (c)(1).) “Despicable conduct” has been defined as conduct
6 that is “so vile, base, or contemptible that it would be looked down upon and despised by ordinary decent
7 people.” (*McNeal v. Whittaker, Clark & Daniels, Inc.* (2022) 80 Cal.App.5th 841, 866.)

8 At most, the FAC alleges that Defendant engaged in wrongful conduct by i) denying a claim; and
9 ii) funding a successful defense of that claim. (*FAC* ¶¶ 2, 3, 4, 16, 17, 21A.) Such allegations, even if
10 accepted as true, cannot be described as being “... so vile, base, contemptible, miserable, wretched or
11 loathsome that it would be looked down upon and despised by ordinary decent people.” (*American*
12 *Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050.) Plaintiff’s
13 FAC cannot possibly support even an inference of malice. CSAA performed an investigation, determined
14 that its insured was not liable, and informed Plaintiff of their decision. The same facts were presented to
15 a jury, and the jury agreed with CSAA’s denial position, rendering a “9-3 defense verdict in the Underlying
16 Action.” (*FAC* ¶ 25A.) This is routine practice in the insurance industry, and the objective facts as
17 presented by Plaintiff do not show conduct which was “intended by the defendant to cause injury to the
18 plaintiff or despicable conduct...carried on by the defendant with a willful and conscious disregard of the
19 rights or safety of others.” (Civ. Code § 3294 (c)(1).)

20 Therefore, CSAA’s denial of Plaintiff’s initial demand does not constitute malice, as required by
21 California law to support his demand for punitive damages.

22 **3. Plaintiff’s Claim for Punitive Damages is Subject to Strike Because The FAC**
23 **Cannot Plead Fraud.**

24 “In California, fraud must be pled specifically; general and conclusory allegations do not suffice.”
25 (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) When the defendant is a corporate entity, the
26 pleading standard is even higher, the Plaintiff must plead, with particularity, facts to “to show how, when,
27 where, to whom, and by what means the representations were tendered.” (*Ibid.*)

28 The FAC fails to allege facts sufficient to state a claim for fraud. In the absence of a properly

1 pleaded fraud claim, Plaintiff's demand for punitive damages in the FAC is irrelevant in improper.
2 Because the FAC has not sufficiently pled malice, fraud, or oppression, the Court should find the portions
3 of the FAC seeking punitive damages to be irrelevant and improper and strike those portions pursuant to
4 Code Civ. Proc. § 436.

5 **C. THERE IS NO BASIS FOR PLAINTIFF'S CLAIMS FOR VARIOUS COSTS,**
6 **COMPENSATORY DAMAGES, INJUNCTIVE RELIEF, OR FUTURE DAMAGES**

7 The entire factual basis contained in the FAC targets privileged conduct and communications
8 under Civ. Code § 47(b). Further, Plaintiff lacks standing to sue CSAA for the claims herein, including
9 the claim for all his alleged compensatory damages.

10 **1. The Absolute Litigation Privilege Bars the FAC's Claim for Compensatory**
11 **Damages**

12 Civ. Code § 47(b) provides in relevant part:

13 A privileged publication or broadcast is one made...(b) In any (1) legislative proceeding,
14 (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the
15 initiation or course of any other proceeding authorized by law and reviewable pursuant to
Chapter 2...

16 "The only exception to the application of section 47(2) to tort suits has been for malicious
17 prosecution actions." (*Ribas v. Clark* (1985) 38 Cal. 3d 355, 364.) The privilege also "poses a clear bar to
18 [an] action insofar as it is based on . . . the tort of intentional infliction of emotional distress." (*Ribas v.*
19 *Clark* (1985) 38 Cal.3d 355, 364.)

20 Here, all the conduct alleged in Plaintiff's FAC arises from statements, filings, or other
21 communicative acts undertaken in connection with prior judicial proceedings. As such, those allegations
22 fall squarely within the scope of the litigation privilege and cannot support a claim for emotional distress
23 damages as a matter of law.

24 Plaintiff has not alleged in the FAC any cause of action for malicious prosecution, nor could he do
25 so under these circumstances and facts alleged. On the contrary, Plaintiff is the party who initiated and
26 pursued the underlying litigation. Accordingly, the sole exception to the litigation privilege (malicious
27 prosecution) is inapplicable here. Accordingly, all portions of Plaintiff's FAC related to emotional distress
28 damages should be stricken pursuant to Code Civ. Proc. § 436.

1 **2. Plaintiff Lacks Standing Against CSAA to Assert a Claim for Compensatory**
2 **Damages**

3 Plaintiff lacks standing against CSAA in its capacity as insurance carrier for a third-party
4 insured—to whom Plaintiff lost at trial.

5 “As a general rule, a third party may directly sue an insurer only when there has been an assignment
6 of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th
7 268.) Further, California courts have consistently held that an attorney cannot be sued by an adverse party
8 for that attorneys’ actions in representing their client, except for an action for malicious prosecution. (*See,*
9 *e.g., Norton v. Hines* (1975) 49 Cal.App.3d 917; *Omega Video v. Superior Court*, (1983) 146 Cal. App.
10 3d 470.)

11 Here, Plaintiff obtained neither an assignment from, nor judgment against, the Insured, Subhi
12 Abdelhalim. Plaintiff is a third party to Defendant, and had no direct relationship with it, and seeks only
13 to sue CSAA for its role in affording a defense to its Insured, through trial. Beyond these threshold bars,
14 there are no specific allegations that CSAA made any specific misleading representations to the Court,
15 whatsoever. Indeed, CSAA—in its role as insurance carrier to the original defendant—did not actually
16 litigate the trial. Indeed, Plaintiff’s FAC improperly imputes the acts of retained insurance defense
17 counsel, against Defendant. Plaintiff cites no authority for the proposition that he can hold an insurance
18 company responsible for the litigation conduct of its third-party insurance defense counsel, while
19 defending a third-party insured. Hence, CSAA cannot possibly be liable for Plaintiff’s underlying
20 emotional distress from a lawsuit Plaintiff lost.

21 **3. Plaintiff is Collaterally Estopped from Seeking Recovery on the Same**
22 **Damages Sought in his Underlying Jury Trial—Which he Lost.**

23 Plaintiff is estopped from simply attempting to relitigate all the same damages that he failed to
24 obtain at his underlying jury trial.

25 “A collateral attack is an attempt to avoid the effect of a judgment or order made in some other
26 proceeding.” *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v. Nasser Bros.*
27 *Realty Co.* (1943) 58 Cal.App.2d 878, 882.) “An attack in a second action on an earlier judgment is
28 collateral.” (*Ibid.*) (citing *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82, 84.) “A judgment of a court of

1 general jurisdiction can only be set aside on collateral attack if the judgment is void on the face of the
2 record.” (*Wouldridge, supra*, 265 Cal.App.2d at 84.) Finally, “collateral estoppel precludes relitigation of
3 issues argued and decided in prior proceedings.” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 826.)

4 Finally, “[t]here are no maxims of the law more firmly established, or of more value in the
5 administration of justice, than [those] ... designed to prevent repeated litigation between the same parties
6 in regard to the same subject of controversy.” *U.S. v. Throckmorton* (1878) 98 U.S. 61, 65 (*emphasis*
7 *added.*)

8 Here, the FAC’s entire effort is to relitigate all the same issues presented in his underlying case—
9 and seek all the same damages sought in the original case. All the key damages allegations against
10 Defendant target the same damages attributable to Plaintiff’s injuries in the underlying case, which
11 culminated in a defense verdict and valid judgment. Hence all the purported damages presented in this
12 FAC were already “argued and decided in prior proceedings.” (*Singh, supra*, 227 Cal.App.4th at 826).
13 Hence all Plaintiff’s damages should be stricken from the FAC.

14 **4. Plaintiff Was Not the Prevailing Party at the Underlying Jury Trial and**
15 **Cannot Therefore Seek Costs.**

16 To obtain compensatory damages or prevailing party costs, Plaintiff must have prevailed at trial.
17 He did not.

18 Under Code Civ. Proc. § 1032, the term ““Prevailing party”” includes the party with a net monetary
19 recovery, ... the “prevailing party” shall be as determined by the court, and under those circumstances,
20 the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties.
21 Furthermore, “a prevailing party is entitled as a matter of right to recover costs in any action or
22 proceeding.”

23 Hence, here, all the items of Plaintiff’s alleged damages that are simply his costs in litigating the
24 underlying jury trial cannot be recovered and should also be stricken.

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V. CONCLUSION

Based upon the foregoing facts and authorities, Defendant respectfully requests that the Court issue an order striking the FAC in its entirety, or in the alternative to strike those damages items identified in Plaintiff's FAC, which are unsupportable as a matter of law.

Dated: April 22, 2026

PORTER SCOTT

A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____

Chad S. Tapp

Tyler J. O'Connell

Attorneys for Defendant

CSAA INSURANCE EXCHANGE

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 22, 2026, I served the following document: **MEMORANDUM OF POINTS AND
7 AUTHORITIES IN SUPPORT OF MOTION TO STRIKE PLEADING**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12 Addressed as follows:

13 **PLAINTIFF, IN PRO PER**

14 Franciscus Dylan Rosario
15 7624 Melody Drive
16 Rohnert Park, CA 94928
17 soltrinox@gmail.com

18 I declare under penalty of perjury under the laws of the State of California that the foregoing is
19 true and correct. Executed on Sacramento, California on April 22, 2026.

20 **Monique Schubert**
21 Monique Schubert